

The Public Liability Insurance Rules, 1991

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Union of India - Act

The Public Liability Insurance Rules, 1991

UNION OF INDIA

India

The Public Liability Insurance Rules, 1991

Rule THE-PUBLIC-LIABILITY-INSURANCE-RULES-1991 of 1991

Published on 15 May 1991

Commenced on 15 May 1991

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The Public Liability Insurance Rules, 1991

Published vide Notification S.O. 330(E), dated 15.5.1991, published in the Gazette of India, Extraordinary, Part 2, Section 3(ii), dated 15.5.1991.

20.

/921

In exercise of the powers conferred by section 23 of the Public Liability Insurance Act, 1991, the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement

-(i) These rules may be called The Public Liability Insurance Rules, 1991.

(ii)

These rules shall come into force on the date of their publication in the Official Gazette.

2.

Definitions

.-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Public Liability Insurance Act, 1991 (

6 of 1991

);

(b)

"Advisory Committee" means the committee constituted by the Central Government in accordance with section 21 of the Act called the Public Liability Insurance Advisory Committee (PLIAC);

(c)

"Authorised physician" means any person registered under any Central Act or State Act providing for the maintenance of a register of medical practitioners or in any area where no such last mentioned Act is in force, any person declared by State Government by notification in the Official Gazette to be a qualified medical practitioner;

(d)

["Fund" means the Public Liability Insurance Fund established]

[Substituted by G.S.R. 391(E), dated 23-4-1993, for " Fund' means a fund established" (w.e.f. 29-4-1993).]

and maintained by an owner in accordance with the proviso to sub-section (3) of section 4 of the Act;

(e)

Words and expressions used in these rules but not defined and defined in the Act shall have the meanings respectively assigned to them in these Acts.

3.

Application for relief

.-An application for claim for relief shall be made to the collector in Form I.

4.

Documents that may be required

.-The claim application shall be made to the Collector in Form I accompanied by such of the following documents as may be applicable:-

(i)

Certificate of an authorised physician regarding disability or injury or illness caused by the accident;

(ii)

Death certificate and/or post-mortem report in the case of a fatal accident;

(iii)

Certificate of the employer regarding loss of wages due to temporary or partial disability, with proof of hospitalisation for a period exceeding three days and certificate about the date of birth or age of victim;

(iv)

Medical bills and receipts;

(v)

Certificate of cost of repairs or replacement of private property damaged by the accident;

(vi)

Any other documents which may have relevance to the claim.

5.

Powers of Collector.-

(i)

The Collector may follow such summary procedure for conducting an inquiry on an application for relief under the Act, as he thinks fit.

(2)

The Collector shall have all the powers of a Civil Court for the following purposes, namely,-

(a)

summoning and enforcing the attendance of any person and examining him on oath;

- (b) requiring the discovery and production of documents;
 - (c) receiving evidence on affidavits;
 - (d) subject to the provisions of sections 123 and 124 of the Indian Evidence Act, 1872 (1 of 1872), requisitioning any public record or documents or copy of such record or document from any office;
 - (e) issuing commissions for the examinations of witness or documents;
 - (f) dismissing an application for default or proceeding ex parte;
 - (g) setting aside any order of dismissal of any application for default or any order passed by it ex parte;
 - (h) inherent powers of a Civil Court as saved under section 151 of the Code of Civil Procedure, 1908 (5 of 1908).
- 6.

Establishment and administration of Fund

.- [(1) An owner seeking exemption under sub-section (3) of section 4 of the Act, shall with the prior approval of the Central Government create and maintain a Fund for an amount of rupees 5 crores or for an amount equal to the paid up capital of the undertaking handling hazardous substances, whichever is less, in the State Bank of India or any of its subsidiaries or any nationalised Bank, and which will be available readily for meeting the liability of that owner under the Act.]

[Substituted by G.S.R. 391(E), dated 23-4-1993 (w.e.f. 29-4-1993).]

- (2) The Fund to be created shall be utilised for the purpose of meeting the liability arising out of any claim awarded against the owner who has created the fund and to discharge the amount awarded by the Collector.
- (3) The Fund shall be operated by an Administrator to be nominated by the owner. The owner shall notify the nomination of the Administrator to the Central Government.

7.

Miscellaneous

.- (1) The Collector shall maintain a register of the application for relief or claim petitions, and a register of awards and payment made thereunder.

- (2) These registers shall be kept open to public inspection from 11.00 a.m. to 1 p.m. and 2 p.m. to 5 p.m. on every working day.
- (3) On a request from a concerned person, the Collector shall supply a copy of or extract from any particulars entered in the registers mentioned above to be a true copy or extract thereof.
- (4) A copy of or extract from the register(s) of the Collector as certified under the hand of the Collector or any officer authorised to act in this behalf shall in all legal proceedings be admissible as evidence as of equal validity with the original.

8.

[Directions.

[Inserted by G.S.R. 596(E), dated 20-9-1991 (w.e.f. 20-9-1991).]

- (1) Any direction issued under section 12 shall be in writing.
- (2) The direction shall specify the nature of action to be taken and the time within which it shall be complied with by any

owner, person, officer, authority or agency to whom such direction is given.

(3)

The owner, person, officer, authority or agency to whom any direction is sought to be issued, shall be served with a copy of the proposed direction and shall be given an opportunity of not less than fifteen days from the date of service of the notice to file, with an officer designated in this behalf, the objections, if any, to the issue of the proposed direction.

(4)

The Government shall within a period of forty-five days from the date of receipt of the objections, or from the date up to which an opportunity is given to the owner, person, officer, authority or agency to file objections, whichever is earlier after considering the objections, if any, received from the owner, person, officer, authority or an agency sought to be directed and for reasons to be recorded in writing, confirm, modify or decide not to issue the proposed direction.

(5)

In a case where the Government is of the opinion that in view of the likelihood of a grave injury to the public it is not expedient to provide an opportunity to file objections against the proposed direction, it may, for reasons to be recorded in writing, issue directions without providing such an opportunity.

(6)

Every notice or direction required to be issued under this rule shall be deemed to be duly served-

(a)

where the person to be served is a company, if the document is addressed in name of the company, at its registered office or at its principal office or place of business, and is either,-

(i)

sent by registered post; or

(ii)

delivered or affixed at some conspicuous part of the premises at its registered office or at the principal office or place of business;

(b)

where the person to be served is an officer serving in Government, if the document is addressed to the person and a copy thereof is endorsed to his Head of the Department and also to the Secretary to the Government, as the case may be, incharge of the Department in which, for the time being, the business relating to the Department, in which the officer is employed, is transacted and is either,-

(i)

sent by registered post; or

(ii)

is given or tendered to him;

(c)

in any other case, if the document is addressed to the person to be served, and-

(i)

is given or tendered to him; or

(ii)

if such person cannot be found, is affixed on some conspicuous part of his last known place of residence or business, or is given or tendered to some adult member of his family or is affixed on some conspicuous part of the land or building, if any, to which it relates; or

(iii)

is sent by registered post to that person.

Explanation .-For the purpose of this rule-

(a)

"company" means any body corporate and includes a firm or other association of individuals;

(b)

"a servant" not a member of the family.

9.

Manner of giving notice

.-The manner of giving notice under clause (b) of section 18 shall be as follows:-

(a)

The notice shall be in writing in Form II.

(b)

The person giving notice may send a copy of the same to-

(i)

if the alleged offence has taken place in a Union territory-

(a)

the Central Board or the Committee/person or body of persons delegated the powers of the Central Board under the Water (Prevention and Control of Pollution) Act, 1974 (

6 of 1974

), and the Air (Prevention and Control of Pollution) Act, 1981 (

14 of 1981

); and

(b)

Ministry of Environment and Forests (represented by the Secretary to the Government of India);

(ii)

if the alleged offence has taken place in a State-

(a)

the State Board for the prevention and control of water pollution constituted under the Water (Prevention and Control of Pollution) Act, 1974 (

6 of 1974

); and

(b)

the Government of the State (represented by the Secretary to the State Government incharge of Environment); and

(c)

the Ministry of Environment and Forests (represented by the Secretary to the Government of India);

(iii)

if the alleged offence has taken place in a District, the District Collector-

(a)

The notice shall be sent by registered post acknowledgment due; and

(b)

The period of sixty days mentioned in clause (b) of section 18 of the Public Liability Insurance Act, 1991 (

6 of 1991

) shall be reckoned from the date it is first received by one of the authorities mentioned above.]

10.

[Extent of liability

[Inserted by G.S.R. 87(E), dated 6-2-1992 (w.e.f. 6-2-1992).]

.- (1) Subject to the provisions of sub-section (2-A) of section 4 of the Act, the maximum aggregate liability of the insurer to pay relief under an award to the several claimants arising out of an accident shall not exceed rupees five crores and in case of more than one accident during the currency of the policy or one year, whichever is less, shall not exceed rupees fifteen crores in the aggregate.

(2)

In awarding relief under the Act, the Collector shall ensure that the insurer's maximum liability under the Insurance Policy does not exceed the limits stipulated in sub-rule (1).

(3)

Any award for relief which exceeds the amount payable under the Insurance Policy shall be met from the Relief Fund and in case the award exceeds the total of the amount of insurance and the Relief Fund, the amount which falls short of such sum payable shall be met by the owner.]

(4)

[Notwithstanding anything contained in sub-rule (3), where an owner is exempted under sub-section (3) of section 4 of the Act, he shall be liable to discharge all the claims arising out of an accident.]

[Inserted by G.S.R. 391(E), dated 23-4-1993 (w.e.f. 29-4-1993).]

11.

Contribution of owner to the Environmental Relief Fund

..(1) [An owner unless exempted under sub-section (3) of section 4 of the Act shall contribute]

[Substituted by G.S.R. 391(E), dated 23-4-1993, for " An owner shall contribute" (w.e.f. 29-4-1993).]
to the Environmental Relief Fund a sum equal to the premium payable to the insurer.

(2)

Every contribution to the Environmental Relief Fund under sub-rule (1) shall be payable to the insurer, together with the amount of premium.

(3)

The contribution received by the insurer shall be remitted as per the scheme under section 7-A of the Act.

FORM I

Form Of Application For Compensation

Shri/Srimati/Kimari* Son of/Daughter of/Widow* of Shri who died/had sustained injuries in an accident on at particulars in respect of accident and other information are given below :

1. Name and father's name of person injured/dead (husband's name in case of married woman or widow)

2. Address of the person injured/dead

3. Age Date of birth

4. Sex of the person injured/dead:

5. Place, date and time of the accident:

6. Occupation of the person injured/dead:

7. Nature of injuries sustained:

8. Name and address of Police Station in whose jurisdiction accident took place or was registered:

9. Name and address of the Medical Officer/Practitioner who attended on the injured/dead :

10. Name/s and address/es of the claimant/claimants :

11. Relationship with the deceased :

12.

Any other information that may be considered necessary or helpful in the disposal of the claim:

I hereby swear and affirm that all the facts noted above are true to the best of my knowledge and belief.

Signature of the Claimant

[FORM II

[Inserted by G.S.R. 596(E), dated 20-9-1991 (w.e.f. 20-9-1991)]

Form Of Notice

[See Rule 9(1)]

By Registered Post acknowledgment due

From*

.....
.....
.....

To

.....
.....
.....

Notice under clause (b) of section 18 of the Public Liability Insurance Act, 1991;

Whereas it appears to me/us that an offence under the Public Liability Insurance Act, 1991(6 of 1991) has been committed/is being committed by

.....
.....

I/We hereby give notice of sixty days under clause (b) of section 18 of the Public Liability Insurance Act, 1991 of my/our intention to file a complaint in the court against

.....
.....
.....

for violation of section of the Public Liability Insurance Act, 1991.

I/We, in support of this notice, hereby enclose the following documents as evidence of proof of violation of the Public Liability Insurance Act, 1991:

.....
.....

Place.....

Date.....

Signature(s)

* In case the notice is given in the name of a Company, documentary evidence authorising the person to sign the notice shall be enclosed to this notice.

** Here give the name and address of the alleged offender. In case of a handling/manufacturing/processing/operating unit indicate the name of the unit/location and nature of activity.

*** Documentary evidence includes photographs/technical reports/health reports of the area, etc., relating to the alleged violation/offence.]

Appendix I

Ministry of Environment and Forests

(Department of Environment, Forests and Wildlife).

Notification

24th.

March, 1992

In exercise of the powers conferred by clause (d) of Section 2 of the Public Liability Insurance Act, 1991 (6 of 1991

), the Central Government hereby specifies the quantities shown in column 3 of the Table below for which or exceeding which every owner handling the hazardous substance mentioned in the corresponding entry in column 2 thereof shall take out insurance policy as per the provisions of the said Act.

Vide S.O. 227(E), dated 24th March, 1992 published in the Gazette of India, Extra., Pt. II, Section 3(ii), dated 24th March, 1992, pp 6-11 and as corrected by S.O. 283(E), dated 21st April, 1993, Published in the Gazette of India, Extra, Pt. II, Section 3(ii), dated 29th April, 1993, pp. 4-5. Notification

Table

Part I ? List of Chemicals With Quantities For Application of Public Liability Insurance Act

Sl.No.

Name of hazardous substance

Quantity

CAS Chemical Abstract Service Number

1

2

3

4

Group I-Toxic Substances

1.

Aldicarb

100kg

116-06-3

2.

4-Aminodiphenyl

1kg

92-67-1

3.

Amiton

1kg

78-53-5

4.

Anabasine 100kg 494-52-0

5.

Arsenic pentoxide, Arsenic (V) acid & salts

500kg

6.

Arsenic Trioxide, Arsenious (III) acid & salts

100kg

7.

Arsine (Arsenic hydride)

10kg

7784-42-1

8.

Azinphos-ethyl

100kg

2642-71-9

9.

Azinphos-methyl

100kg

86-50-0

10.

Benzidine

1kg

92-87-5

11.

Benzidine salts

1kg

12.

Beryllium (powders 'compounds')

10kg

13.

Bis(2-chlorethyl) sulphide

1kg

505-60-2

14.

Bis(chloromethyl) ether

1kg

542-88-1

15.

Carbofuran

100kg

1563-66-2

16.

Carbophenothion

100 kg

786-19-6

17.

Chlorfenvinphos

100 kg
470-90-6
18.
4-(Chloroformyl) morpho line
1kg
15159-40-7
19.
Chloromethyl methyl ether
1kg
107-30-2
20.
Cobalt (metal oxides, carbonates, sulphides, as powders)
1 tonne
21.
Crimidine
100 kg
535-89-7J.
22.
Cyanthoate
100 kg
3734-95-0
23.
Cycloheximide
100 kg
66-81-9
24.
Demeton
100 kg
8065-48-3
25.
Dialifos
100 kg
10311-84-9
26.
OO-Diethyl S-ethylsulphinyl Imethyl phosphorothioate 100 kg
2588-05-8
27.
OO-Diethyl S?ethylsulphonylmethyl phosphorothioate
100 kg
2588-06-9
28.
OO-Diethyl S?ethylthiomethyl phosphorothioate
100kg
2600-69-3
29.
OO-Diethyl S-isopropylthiomethyl phosphorodithioate
100kg
78-52-4
30.
OO-Diethyl S-propylthiomethyl phosphorodithioate
100kg

3309-68-0

31.

Dimefox

100kg

115-26-4

32.

Dimethylcarbamoyl chloride

1kg

79-44-7

33.

Dimethylnitrosamine

1kg

62-75-9

34.

Dimethyl phosphoramidocyanidic acid

It

63917-41-9

35.

Diphacinone

100kg

82-66-6

36.

Disulfoton

100kg

229-04-4

37.

EPN

100kg

2104-64-5

38.

Ethion

100kg

563-12-2

39.

Fensulfothion

100kg

115-90-2

40.

Fluometil

100kg

4301-50-2

41.

Fluoroacetic acid

1kg

144-49-0

42.

Fluoroacetic acid, salts

1kg

43.

Fluoroacetic acid, esters

1kg

44.
4-Fluoroacetic acid, amides
1kg
45.
Fluorobutyric acid,
1kg
462-23-7
46.
4-Fluorobutyric acid, salts
1kg
47.
4-Fluorobutyric, acid esters
1kg
48.
4-Fluorobutyric, acid, amides
1kg
49.
4-Fluorocrotonic acid
1kg
37759-72-1
50.
4-Fluorocrotonic acid, salts
1kg
51.
4-Fluorocrotonic acid, esters
1kg
52.
4-Fluorocrotonic acid, amides
1kg
53.
4-Fluoro-2-hydroxybutyric acid
1kg
54.
4-Fluoro-2-hydroxybutyric acid, salts
1kg
55.
4-Fluoro-2-hydroxybutyric acid, esters
1kg
56.
4-Fluoro-2-hydroxybutyric acid, amides
1kg
57.
Glycolonitrile (Hydroxyacetonitrile)
100kg
107-16-4
58.
1,2,3,7,8,9- Hexachlorodibenzo-p-dioxin
100kg
19408-74-3
59.
Hexamethylphosphoramide

1kg
680-31-9
60.
Hydrogen selenide
10kg
7783-07-5
61.
Isobenzan
100kg
297-78-9
62.
Isodrin
100kg
465-73-6
63.
Juglone (5-Hydroxynaphthalene 1,4-dione)
100kg
481-39-0
64.
4,4-Methylenebis (2-chloroaniline)
10kg
101-14-4
65.
Mehtyl isocyanante
150kg
624-83-9
66.
Mevinphos
100kg
7786-34-7
67.
2-Naphthylamine
1kg
921-59-8
68.
Nickel (metal, oxides, carbonates, sulphide as powders)
1t
69.
Nickel tetracarbonyl
10kg
13463-39-3
70.
Oxydisulfoton
100kg
2497-07-6
71.
Oxygen difluoride
10kg
7783-41-7
72.
Paraoxon (Diethyl 14-nitrophenyl phosphate)

100kg
311-45-5
73.
Parathion
100kg
56-38-2
74.
Parathion-methyl
100kg
298-00-0
75.
Pentaborane
100kg
19624-22-7
76.
Phorate
100kg
298-02-2
77.
Phosacetim
100kg
4104-14-7
78.
Phosgene (carbonyl chloride)
750kg
75-44-5
79.
Phosphamidon
100kg
13171-21-6
80.
Phosphine (Hydrogen phosphide)
100kg
7803-51-2
81.
Promurit (1 -(3,4-Diech
orophenyl)-3-triazenethiocarboxamide)
100kg
5836-73-7
82.
1,3-Propanesultone
1kg
1120-71-4
83.
I-Propen-2-chloro-1,3-diol diacetate
10kg
10118-72-6
84.
Pyrazoxon
100kg
108-34-9

85.
Selenium hexafluoride
10kg
7783-79-1
86.
Sodium selenite
100kg
10102-18-8
87.
Stibine (Antimony hydride)
100kg
7803-52-3
88.
Sulfotep
100kg
3689-24-5
89.
Sulphar dichloride
It.
10545-99-0
90.
Tellurium hexafluoride
100kg
7783-80-4
91.
TEPP
100kg
107-49-3
92.
2,3,7,8- Tetrachlorydibenzo-p-dioxin (TCDD)
1kg
1746-01-6
93.
Tetrameth y lened isu l photetramine
1kg
80-12-6
94.
Thionazin
100kg
297-97-2
95.
Tripartate (2,4-Dimethyl-1, 3-dithiolane-2-carboxaldehydc
O-methylcarbamoxyloxime)
100kg
26419-73-8
96.
Trichloromethanesulphenyl chloride
100kg
594-42-3
97.
1- Tri (cyclohexyl) stannyl-1 H.1,2,4-triazole

100kg
41083-11-8
98.
Triethylenemelamine
10kg
51-18-3
99.
Warfarin
100kg
81-81-2
Group 2- Toxic Substances
100.
Acetone cyanohydrin 2(cyanopropane-2-(01)
200t.
76-86-5
101.
Acrolein (2-Propenal)
20t
107-02-8
102.
Acrylonitrile
201
107-13-1
103.
Allyl alcohol (Propen-1-01)
200t
107-18-6
104.
Allylamine
200t
107-11-9
105.
Ammonia
50t
7664-41-7
106.
Bromine
40t
7726-95-6
107.
Carbon disulphide
20t
75-15-0
108.
Chlorine
lot
7782-50-5
109.
Diphenyl methane di-isocyanate (MDI)
20t
101-68-8

110.
Ethylene dibromide (1,2-Dibromoethane)
5t
106-93-4
111.
Ethyleneimine
50t
151-56-4
112.
Formaldehyde (concentration 90%)
5t
50-00-0
113.
Hydrogen chloride (liquefied gas) 7647-01-0
25t
114.
Hydrogen cyanide
5t
74-90-8
115.
Hydrogen fluoride
5t
7664-39-3
116.
Hydrogen sulphide
5t
7783-06-4
117.
Methyl bromide (Bromo methane)
20t
74-83-9
118.
Nitrogen oxides
50t
11104-93-1
119.
Propyleneimine
50t
75-55-8
120.
Sulphur dioxide
20t
7446-09-5
121.
Sulphur trioxide
15t
7446-11-9
122.
Tetraethyl lead
5t
78-00-2 75-74-1

123.
Tetramethyl lead
5t
584-84-9
124.
Toluene di-isocyanate (TDI)
10t
75-01-4
Group 3-Highly Reactive Substances
125.
Acetylene (ethyne)
5t
74-86-2
126.
a. Ammonium nitrate (1)
350t
6484-52-2
b. Ammonium nitrate in the form of fertiliser (2)
1250t
127.
2,2-Bis (tert-butylperoxy) butane (concentration ? 70%)
5t
2167-23-9
128.
1,1-Bis(concentration ? 70%)(tert-butylperoxy) cyclohexane
(concentration cyclohexane in ? 80%)
5t
3006-86-8
129.
tert-Butylperoxyacatquate (concentration ? 70%)
5t
107-71-1
130.
tert-Buthylperoxyisobutyrate (concentration in ? 80%) 5t
109-13-7
131.
tert-Buthyl peroxy isopropyl carbonate (concentration in ? 80%)
5t
2372-21-6
132.
tert-Buthyl peroxymalcate (concentration ? 80%)
5t
1931-6-0
133.
tert-Buthylperoxypivalate (concentration ? 77%)
50t
927-07-1
134.
Dibenzyl peroxydicarbonate (concentration in ? 90%)
5t

2144-45-8

135.

Di-sec-butylperoxydicarbonate (concentration in ? 80%) 5t

19910-65-7

136.

Diethyl peroxydicarbonate (concentration ? 30%)

50t

14666-78-5

137.

2,2-Dihydroperoxypropane (concentration in ? 30%)

5t

2614-76-8

138.

Di-isobutyl peroxide (concentration ? 50%)

50t

3437-84-1

139.

Di-n-propyl peroxydicarbonate (concentration in ? 80%) 5t

16066-38-9

140.

Ethylene oxide

5t

75-21-8

141.

Ethyl nitrate

50t

625-58-1

142.

3,3,6,9,9- Hexamethyl-1,2,4,5- tetraoxacyclononane
(concentration ? 75%)

50t

22397-33-7

143.

Hydrogen

2t

1333-74-0

144.

Liquid oxygen

200t

7782-44-7

145.

Methyl ethyl ketone peroxide (concentration ? 60%)

5t

1338-23-4

146.

Methyl isobutyl ketone peroxide (concentration 2 60%)

50t

37206-20-3

147.

Peracetic acid (concentration 2 60%)

50t

79-21-0

148.

Propylene oxide

5t

75-56-9

149.

Sodium chlorate

25t

7775-09-9

Group 4 - Explosive Substances

150.

Barium azide

50t

18810-58-7

151.

Bis (2,4,6-trinitrophenyl) amine

50t

131-73-7

152.

Chlorotrinitrobenzene

50t

28260-61-9

153.

Cellulose nitrate (containing 12.6% Nitrogen)

50t

9004-70-0

154.

Cyclotetramethylenetetranitramine

50t

2691-41-0

155.

Cyclotri methylenetrinitramine

50t

121-82-4

156.

Diazodinitrophenol

lOt

7008-81-3

157.

Diethylene glycol dinitrate

lOt

693-21-0

158.

Dinitrophenol, salts

50t

159.

Ethylene glycol dinitrate

lOt

628-96-6

160.

1-Guany 1-4- nitrosaminoguan yl 1-tetrazene

IOt
109-27-3
161.
2,2,4,4,6,6, - Hexani trostibene
50t
20062-22-0
162.
Hydrazine nitrate
50t
13464-97-6
163.
Lead azide
50t
13424-46-9
164.
Lead styphanate (Lead 2,4,6-trinitroresorcinoxide)
50t
15245-44-0
165.
Mercury fulminate
IOt
20820-45-5 628-86-4
166.
N-Methy1-N - 2,4,6- tetranitroaniline
50t
479-45-8
167.
Nitroglycerine
IOt
55-63-0
168.
Pentaerythritol tetranitrate
50t
78-11-5
169.
Picric acid (2,4,6-trinitrophenol)
50t
88-89-1
170.
Sodium picramate
50t
831-52-7
171.
Styphnic acid (2,4,6-Trimitroesorcinol)
50t
82-71-3
172.
1,3,5- T riamino- 2,4,6-trinitrobenzenc)
50t
3058-38-6
173.

Trinitroaniline

50t

26952-42-1

174.

2,4,6- Trinitroarisoie

50t

606-35-9

175.

Trinitrobenzene

50t

25377-32-6

176.

Trinitrobenzoic acid

50t

35860-50-5 129-66-8

177.

Trinitrocresol

50t

28905-71-7

178.

2,4,6- Trinitrophenitole

50t

24732-14-3

179.

2,4,6- Trinitrotoluene

50t

118-06-7

Part II ? Classes of Hazardous substances not specifically named in Part I

1

2

3

4

Group 5-Flammable Substances

1.

Flammable gases: Substances which

in the gaseous state at normal pressure and mixed with air become flammable and the boiling point of which at normal pressure is 20°C or below;

15t

?

2.

Highly flammable liquids:

Substances which have a flash point lower than 23°C and the boiling point of which at normal pressure is above 20°C;

1000t

?

3.

Flammable liquids: Substances

which have a flash point lower than 65°C and which remain liquid under pressure, where particular processing conditions, such as high pressure and high temperature, may create major

accident hazards.

25t

Appendix II

Ministry of environment and forests

(Department of Environment, Forests and Wildlife)

Vide 5.0. 282(E), dated 29th April, 1993, published in the Gazette of India, Extra., Pt. II, Section 3(ii), dated 29th April, 1993. Notification

19th.

March, 1993

In exercise of the powers conferred by sub-section (1) of Section 13 and clause (a) of section 18 of the Public Liability Insurance Act, 1991 (

6 of 1991

) the Central Government hereby authorises the officers and authorities listed in column (2) of the Table below for the purposes of the said sections with the jurisdiction mentioned against each of them in column (3) of the Table:

Sl. No.

Person, Authority or Officer

Jurisdiction

1

2

3

1.

Any Director, Joint Secretary, Adviser or Additional Secretary to the Government of India in the Department of Environment, Forests and Wildlife.

Whole of India

2.

The Chairman or Member-Secretary of the Central Pollution Control Board constituted under Section 3 of the Water (Prevention and Control of Pollution) Act, 1974 (

6 of 1974

)

Whole of India

3.

The Government of the State (Represented by the Secretary to the State Government in charge of Environment).

Whole of State

4.

The Chairman or Member-Secretary of the State Pollution Control Board constituted under Section 4 of the Water (Prevention and Control of Pollution) Act, 1974 (

6 of 1974

) or a

State Board for ,the Prevention and Control of Air Pollution constituted under Section 5 of the Air (Prevention and Control of Pollution) Act, 1981 (

14 of 1981

).

Whole of State

5.

The Chairman or tire Member-Secretary of the Pollution Control Committees of the Union Territories who have been

delegated powers under clause (4) of Section 4 of the Water (Prevention and Control of Pollution) Act, 1974 and Section 6 of the Air (Prevention and Control of Pollution) Act, 1981 by Central Pollution Control Board.

Whole of the Union Territories or as laid down by the Central Board

6.

District Collector

Whole of Revenue District

7.

Regional Officers of the Central Pollution Control Board who have been delegated powers under Sections 20, 21 and 23 of the Water (Prevention and Control of Pollution) Act, 1974 (6 of 1974) and section 24 of the Air (Prevention and Control of Pollution) Act, 1981 (

14 of 1981

).

Area as laid down by the Central Board

8.

Regional Officers of the State Pollution Control Board who have been delegated powers under Sections. 20, 21 and 23 of the Water (Prevention and Control of Pollution) Act, 1971.

Area as laid down by the State Board

9.

Regional Officers of the State Pollution Control Board who have been delegated powers under Section 24 of the Air (Prevention and Control of Pollution) Act, 1981

Area as laid down by the State Board

10.

Any Regional/Zonal Officers or a Director In charge of a Regional/Zonal Office of the Ministry of Environment and Forests.

Zonal/Regional area as laid down by the Ministry of Environment and Forest.

11.

Joint Director (Legal) in the Department of Environment, Forests and Wildlife, Ministry of Environment and Forests, Government of India.

Whole of India.

Related AI tags, queries and research notes

Translation